Completion Notes for Joint AST version

This document is intended to guide you through completing This document is intended to guide you through completing the two main NRLA Joint ASTs (5.0JS and 5.0JF).

This tenancy agreement is to be used where you are renting out to a group of tenants and they are renting the entire property from you.

Before you start

These documents are designed for use in Adobe Acrobat Reader. While they may be viewable in some internet browsers, you will lose any of the information and potentially some of the features of the document if you fill it out in the internet browser rather than using Adobe Reader.

To make sure the document works correctly, please see our guide to using the free Adobe Reader (https://www.nrla.org.uk/resources/using-pdf-documents) software before filling out this form.

Executing the agreement

This agreement is dated 1.9.24

(Insert this date only when all parties have signed the agreement and want it to start.)

The date that should be entered is the execution date of the tenancy. This is the date that the tenancy agreement will become binding on both parties. Leave this date until after everybody has signed the agreement.

You should only date the agreement once you are sure you want the tenancy agreement to come into effect. Normally this means that your tenant will have signed the agreement and paid you the deposit/first month's rent. However you should also wait to date this agreement until the tenant has completed anything else that is necessary, such as providing you with a completed deed of guarantee or successfully proving they have a 'right to rent' in the UK.

Section A – Main Terms

This section sets out the main terms of the agreement and is where you will fill in most of the required information.

This agreement is between us, the landlord

Mr John Landlord
Mrs Jane Landlord

The first part requires you to place your full name(s) in the first box to identify yourself as the landlord.

and you, the tenant (if there is more than one, they are jointly and separately liable)

Mr Jack Tenant
Mrs Jill tenant

Next, set out the full names and titles of the tenants who will share joint responsibility for the terms and conditions of this agreement. For a room only tenancy this will usually be only one or two tenants.

We will let out the property at

1 Tenant Road, Example Town, TXX 1XX

to you as well as any furniture, fixtures and fittings and other items referred to in the Inventory and Schedule of Condition.

After that, insert the address of the property that will be let out.

Rent

You must pay £ 1000 rent in advance in total each month

The first payment of rent must be paid by 1st September 2024

Subsequent rent payments must be paid in advance by 1st every month while the tenancy lasts.

Payment must be made in cleared funds to:

Landlord's bank details

The Rent section should be filled out with the specific details of how much rent is to be paid and when and how it should be paid.

In the above example the rent of £1000 is due on the 15th of every calendar month and the first payment must be paid by 1st September 2024.

Term

The agreement is for an initial fixed term of 12 months starting on 1st September.

The Term section asks you to specify the length of the fixed term of the tenancy (normally 6-12 months) and what date the tenants will be able to use the property from. This date is the 'commencement date'. It can be further in the future than the date you enter at the top of page 1.

For example if you let property to students, it is common to agree a tenancy in April or May that will only commence in September.

Permitted occupiers

In addition to you, only the following permitted occupiers are allowed to live in the property

none

Nobody else is allowed to live in the property without our written permission.

In the next section set out anyone else who can live in the room, aside from the tenant. Room only tenancies will normally put 'nobody' in this section. Particularly if the property is subject to HMO licensing.

Shared facilities

We let the property along with any contents listed in the Inventory and Schedule of Condition given to you.

You are also entitled to use and access the following shared facilities and common parts while you rent the property:

Bathroom, Kitchen, Living room, Dining room

If you are allocated parking it is n/a.

Enter any shared facilities and allocated parking that the tenants are entitled to use such as the kitchen, bathroom, dining room, etc.

Utilities

You and we agree:

☐	Water charges:	
☐	Gas:	
☐	Television licence:	
☐	Broadband:	
☐	Electricity:	
☐	Telephone:	
✓	Council Tax:	We are responsible for paying.

If you are responsible for paying a bill, this includes contacting the local billing authority or the service provider to ensure they know you are liable to pay it.

Next you should set out who is responsible for paying the charges in the utilities section. Mark the ones the tenant are responsible for with 'you' and the ones you will pay 'we'.

For joint tenancies it is commonly the tenant who would be responsible for all of the above payments, though in some joint HMO properties the landlord will offer a bills-inclusive option where they pay the bills instead.

This has become less common however, given the rise in energy costs and the availability of easy bill-splitting options like Glide which help tenants organize their own share of bills.

Security deposit

You must pay the deposit of £ 1153.84 in full to Deposit Scheme/Landlord/Agent.

It will be protected in a Government-approved deposit scheme within 30 days of receipt in line with clause 5.0 of the agreement.

The Security Deposit section asks you to fill out how much the deposit will be for this particular tenancy.

The deposit amount should be the total required from all of the tenants listed on this agreement. If no deposit is being taken, insert 'Nil' here.

Contact details

If you need to contact us, you can

write to us at: Landlord or agent's address for service

email us at: email address monitored by you or your agent

phone us on: your phone number or your agent's phone number

If we need to contact you via email, we will do so at:

Name	Email address
Full name of tenant	tenant email they have provided

Insert the contact details for you or your agent and the email address and name of each tenant on the agreement.

Your contact information will be copied into the document later on and used as the address to which the tenant may serve notice. The tenant's email address will be the address you send documents like 'how to rent: a checklist for renting in England, or the electrical installation condition report.'

Section B – Definitions

This section refers to the terminology used throughout the agreement and does not need to be completed by you.

Section C – Terms and Conditions

This section sets out the other terms and obligations that you and the tenants will abide by during the tenancy. This has already been drafted so you don't need to fill out very much of it. However both you and the tenants should read this section thoroughly, so that everyone understands the obligations placed on them.

On page 9 you will find 5.0 'The Deposit'. This section asks you to detail how you will be protecting any deposit taken.

5.0 The deposit

5.1 The deposit will be held by yourself, your agent or the deposit scheme.

5.2 The deposit will be protected in a Government-approved tenancy deposit scheme, namely your chosen scheme

We can transfer the deposit to another Government-approved tenancy deposit scheme or change the person who holds the deposit (unless it has been paid into a Government-approved custodial tenancy deposit scheme). If we do this, we will inform you in writing.

Insert the name of person or organisation who will hold the deposit in Clause 5.1. This may be different from the person that the Deposit was sent to if, for example, the deposit was originally paid to an agent or the deposit is held by a custodial scheme.

If you have more than one tenant you should set a lead tenant out in Clause 5.6. They will be the person who deals with the deposit at the end of the tenancy. They will discuss deductions with you and they will be the person you return the deposit to at the end of the tenancy. They will also be responsible for returning each tenant's share of the deposit once it has been returned. If there is only one tenant, then insert n/a.

5.7 If someone who is not a tenant has paid towards the deposit, you must provide their name and address below. Otherwise, you confirm that the only people who have paid towards the deposit are tenants.

Name	Address

If anyone other than your tenants have paid towards the deposit their details should be entered in 5.7. Once you have protected the deposit anyone listed here will also need to be sent the deposit scheme's prescribed information. If the scheme's rules require you send them any further information such as a deposit certificate, this should be sent to them too.

If only your tenants have paid towards the deposit put 'N/A' in both boxes.

7.3 Any notices you need to serve on us can be sent by first-class post or delivered to our address at:

Landlord or agent's address for service

Alternatively you may email notices to:

an email address monitored by you or your agent

Clause 7.3 sets out where the tenant's notices must go to. The email address or the postal address will have been copied over from your contact details on page 2 of this agreement. Take this opportunity to double- check the information is accurate and update if necessary. Any amendments made here will also update the information on page 2.

You and your tenants will then need to sign the agreement. Insert the names of each tenant in the first of these boxes. The tenants will then have to sign and date the document next to their name.

Signed as an agreement

Between us, the landlord

Signature

Name of signatory Landlord's name or agent if signing on behalf of the landlord

Date

And you, the tenant

Name	Signature	Date
Full name of tenant		

Once the tenants have signed the agreement and you are happy to proceed you should sign and date the agreement yourself. If your agent is signing on your behalf then they should input their own address. If you are using an addendum document remember to sign this as well and include it with the contract.

After this, return to page 1 and, if you are happy to enter into a contract, insert the execution date for the Agreement on page 1 of this document.